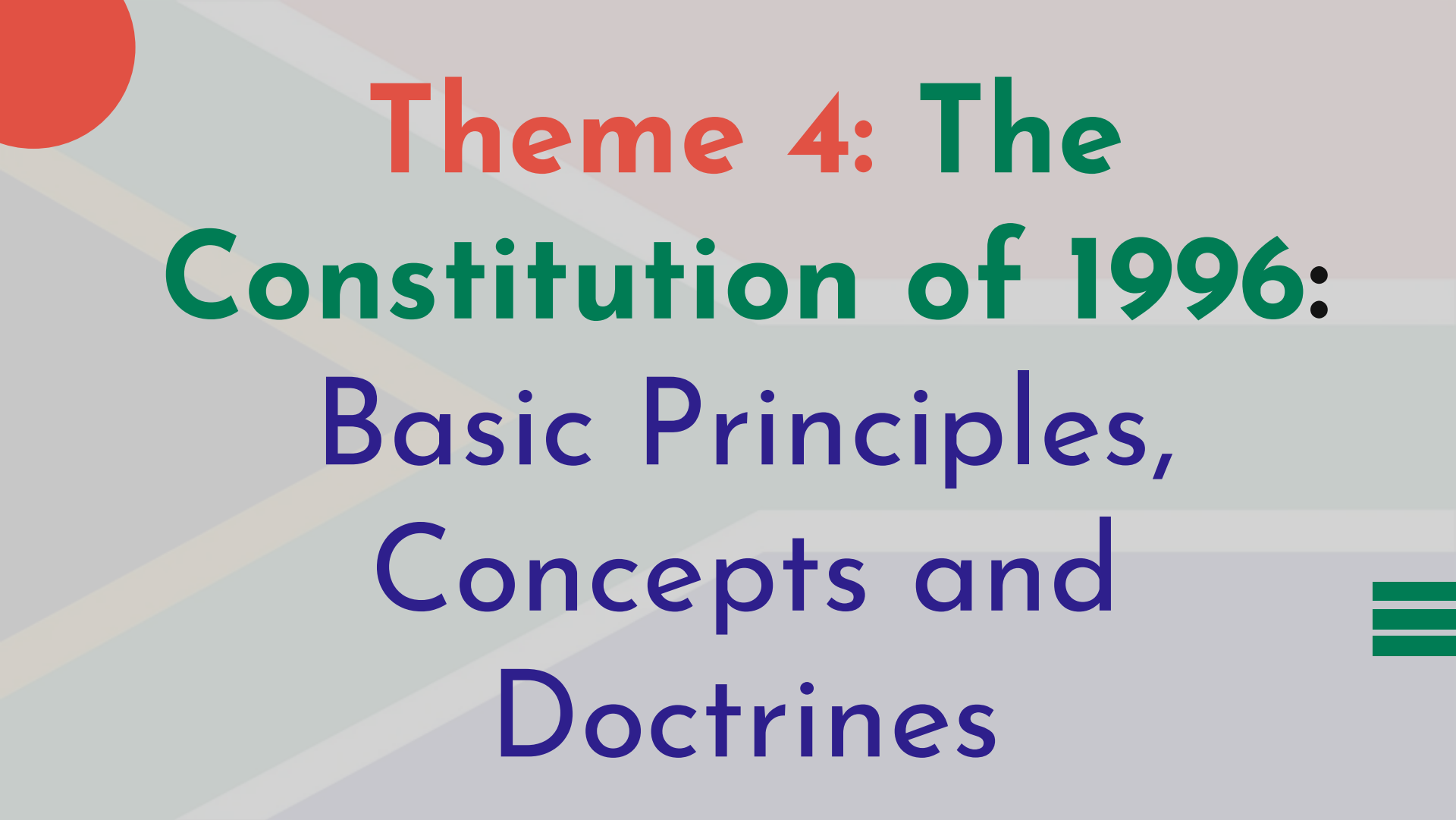




Theme 4: The Constitution of 1996: Basic Principles, Concepts and Doctrines





Recap

Value Based Constitutionalism

- Value-based constitutionalism is a legal concept that emphasises that constitutions are not just legal, procedural documents but are rooted in core ethical, moral, and social values.
- What sections give us the Values in the 1996 Constitution?
- What were some of the values discussed?

Value Based Constitutionalism

- We looked at how courts uses these values in the interpretation of rights – s39
- We looked at how courts use these values in the limitation of rights – s36
 - Rights are not absolute – can be limited
 - What is the two-stage enquiry for the limitation of rights?
- Who can remind me how Constitutional values were used in **S v Makwenyane??**

Value-based constitutionalism

1. Normative

- The Constitution is based on **moral values**, not just legal rules

2. Interpretive

- Values guide how courts **understand and apply rights**

3. Transformative

- The Constitution aims to **change society and address injustice**

4. Contextual

- Must respond to and reflect South Africa's social and historical context

5. Counter-majoritarian

- Courts can uphold values even against **public opinion**

Class task:

Scenario:

- A group of 20 people has been living on unused municipal land for 3 years.
- The municipality now wants to evict them to allow for a private development project that will bring jobs and infrastructure.
- The residents argue that eviction will leave them homeless.

Task 1 in small groups

- Identify relevant constitutional values
- Decide the outcome
 - Should the eviction be allowed?
 - Discuss which values should carry more weight
 - How did your chosen values influence your decision



Application of the Bill of Rights



Bill of Rights

- Bill of Rights has been constructed in such a way to give effect to the **transformative vision of the Constitution, 1996**
 - It sets out a unique human rights vision for South Africa
 - The broad range of rights is aimed at facilitating political and socio-economic transformation in South Africa while protecting **the human dignity** of all persons within the State
- It has **broad application – both to the State and to private parties**



The Application of the Bill of Rights

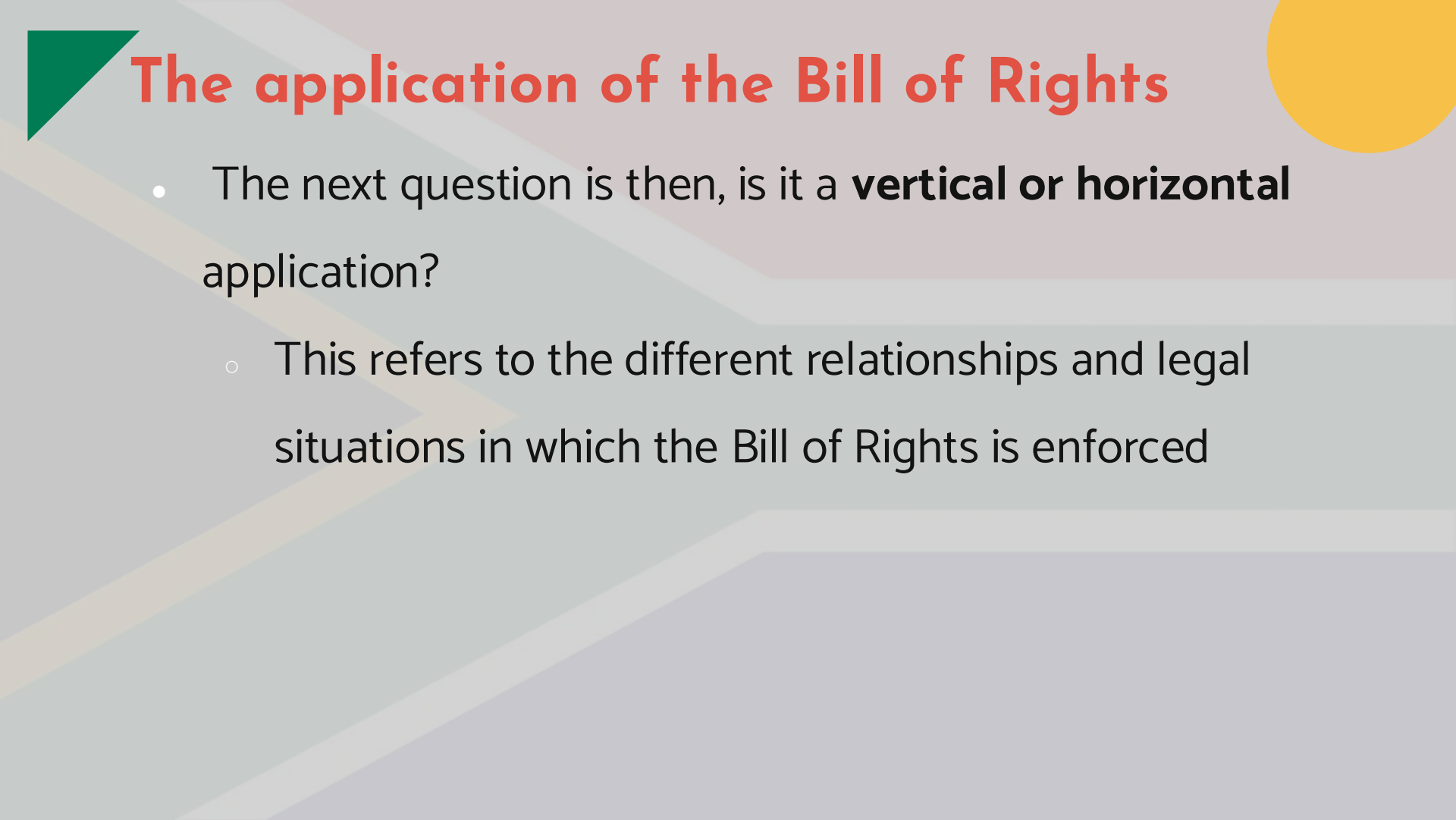
- When litigating the Bill of Rights, the Court has to determine whether the BOR applies
 - **Directly or Indirectly**
 - **Vertically or Horizontally**

The Application of the Bill of Rights

- **Direct application:**
 - Direct application of the Bill of Rights occurs when a person, company, or state organ **violates a constitutional right found in chp 2**
 - Or when the **ordinary rules of law** (Legislation, common law, customary law) are not consistent with the Bill of Rights
 - If they are not, the BOR if applied directly will override these rules of law – ie law will be declared invalid by the courts
 - **Example:** company firing a woman due to pregnancy (**violating section 9 equality rights**), would be unconstitutional and invalid
 - Example: S v Mawanyane – Death Penalty declared unconstitutional

The Application of the Bill of Rights

- **Indirect application:** the purpose is to determine whether the ordinary rules of the law promote **the values** of the BOR
 - If they do not, the court will use the **BOR to develop** the rules of law (**s39(2)**)
 - **Example: the** development of common law to align with constitutional values, as seen in *Carmichele v Minister of Safety and Security*. (2001) CC: The Court used **s39(2)** to interpret the law of delict to promote rights and constitutional values, rather than directly invalidating a statute.
 - **IE:** Instead of declaring a law invalid (direct application), **courts interpret** legislation or develop common law/customary law to conform with the Bill of Rights



The application of the Bill of Rights

- The next question is then, is it a **vertical or horizontal** application?
 - This refers to the different relationships and legal situations in which the Bill of Rights is enforced

The application of the Bill of Rights

Vertical application

- **Governed by s8(1)** – looks at the relationship between the state and private individuals
- Imposes obligations on the state to respect, protect and fulfil rights in the BOR
- Acts as an additional check on state power – therefore binds the legislative, executive, judiciary and all organs of state
- Protects citizens from abuse of power by the government
- **Example:**
 - A person brings a claim against the police for unlawful arrest, or someone who challenges a government policy that they claim violates their rights



The application of the Bill of Rights

Examples of vertical application of rights :

- **Right to Equality (Section 9):** An individual sues a **government department** for refusing to hire or promote them based on race, gender, or sexual orientation.
- **Freedom of Expression (Section 16):** A journalist or citizen challenges the police for arresting them for participating in a lawful public protest.
- **Right to Access Information (Section 32):** A person uses the PAIA act to force a public body, eg DHA, to disclose records held by the state.



The application of the Bill of Rights

- **Socio-economic Rights (Sections 26 & 27):** Communities challenging the government for failing to provide adequate, basic water services or, as in the Grootboom case, reasonable access to housing.
- **Right to Fair Trial (Section 35):** An accused person argues that their rights were violated by the police or prosecutor during their arrest or detention.
- **Property Rights (Section 25):** A landowner challenges the state's expropriation of their property, arguing it was not done for a public purpose or without fair compensation.



The application of the Bill of Rights

Horizontal application

- **Governed by s8(2)** – requires considering the nature of the right and duty imposed
- When applied horizontally, this imposes obligations **between private persons (individuals or companies)** to respect the rights of the BOR (in certain circumstances)
 - Protects citizens from violations of rights by private parties such as unfair discrimination by an employer
 - IE you don't have to rely on the common law or legislation – you can say “this person has violated my constitutional right”



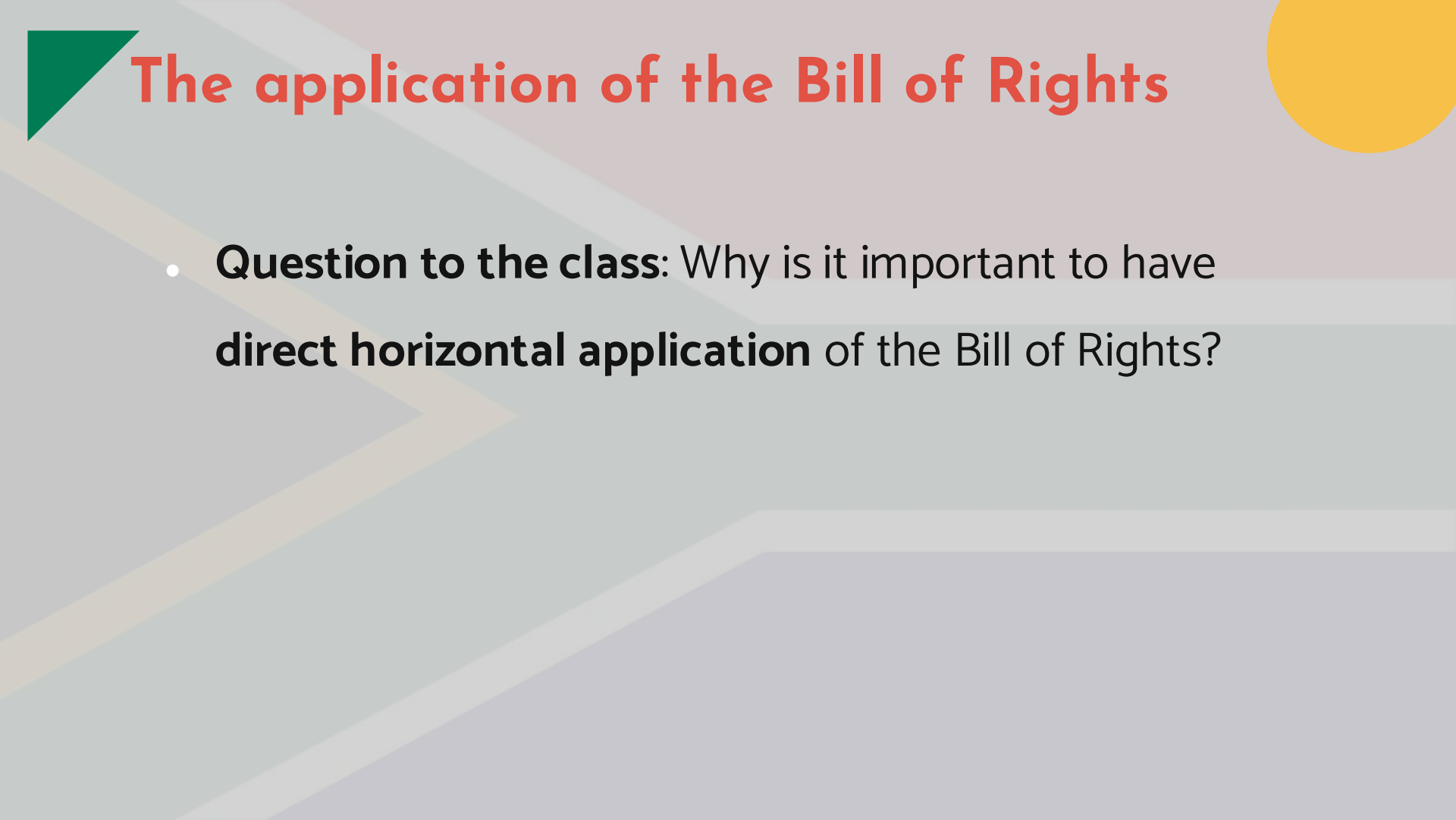
The application of the Bill of Rights

Direct Horizontal application

- **Governed by s8(2):** The BOR applies directly to the conduct of private individuals, allowing them to rely directly on a constitutional right for a claim

Indirect Horizontal Application

- **S39(2):** The BOR influences private law by requiring courts to interpret legislation or develop the common law in a way that promotes the spirit, purport, and object of the BOR



The application of the Bill of Rights

- **Question to the class:** Why is it important to have **direct horizontal application** of the Bill of Rights?



The application of the Bill of Rights



Example 1: Equality (S9)

- **Scenario:** A private employer refuses to hire someone based on their race, gender, or disability.
- Even though this is a private employer (not the state) the right to **equality** can apply directly
- The private individual can argue, “my constitutional right to equality has been infringed by this private actor”
- Equality is a right that clearly makes sense in private relationships (employment, services etc)
- Courts recognised that discrimination is not only a state problem



The application of the Bill of Rights

Example 2: Freedom of Expression (s16)

Scenario: A private media company refuses to publish an opinion article

- The private individual might try to rely on freedom of expression
- BUT the court will have to balance
 - The writers freedom of expression
 - The companies freedom to choose what it publishes
 - Rights can apply directly but can compete with other rights in private relationships



The application of the Bill of Rights

Example 3: Right to housing (s26)

Scenario: A private land owner evicts people living on their land without following the legal processes

- Those evicted can rely directly on the right to access housing
- They can argue “this eviction violates my right to housing”
- Rights will still apply between the private individuals
- The Court will ask
 - Is eviction just and equitable
 - What processes were followed
 - What is the impact on the vulnerable people
- Again we see competing rights of private individuals as the land owner has his own property rights protected by s25

The application of the Bill of Rights

Example 4: Right to education (s29)

Scenario: Private school refuses to admit a learner without a fair and lawful reason (arbitrary exclusion)

- The learner or parent may rely directly on s29 (right to basic education)
- They can argue “The decision unjustifiably limits my right to education”
- Private schools are private individuals (not the state)

The application of the Bill of Rights

Example 4: Right to education (s29)

Scenario: Private school refuses to admit a learner without a fair and lawful reason (arbitrary exclusion)

- Again, the court will ask :
 - Is exclusion reasonable
 - Does it undermine the right to basic education
 - Are there other justifications such as contractual or policy justifications
 - Nuance: The right to basic education is a very strong right (immediately realisable)
 - But the balance will be with the school's autonomy to decide who they admit



The application of the Bill of Rights



Key take aways from the examples:

- Rights can shape private relationships, especially where there is
 - A power imbalance
 - Basic human needs are effected
- Direct horizontal application means you can use the constitution itself in disputes with other private parties – but courts will always ask whether it is appropriate and how rights should be balanced
- **It will depend on**
 - The nature of the right
 - The relationship between the parties
 - And the need to balance competing rights

The application of the Bill of Rights

Class task:

- Look through the rights in Chapter 2 of the Constitution
- Discuss how they may be applied directly: vertically and horizontally
 - Look at nature of right, who it affects, how it affects them, etc